

Stereo HCJDA 38
JUDGMENT SHEET

IN THE LAHORE HIGH COURT LAHORE
(JUDICIAL DEPARTMENT)

Civil Revision No.24335 of 2017

Sanam Shahzadi

Vs.

Muhammad Anwar

Petitioner by:- Malik Khalid Mehmood Khokhar,
Advocate.

Respondent by: Mr. Hassan Asghar Dhariwal, Advocate.

Date of hearing: - 13.05.2026

JUDGMENT

RAHEEL KAMRAN, J:- Through this petition in terms of Section 115 of the Code of Civil Procedure, 1908, the petitioner has assailed the judgment and decree dated 20.03.2017, whereby the Additional District Judge, Sialkot, while accepting two appeals preferred by the respondent, dismissed the suit of the petitioner and decreed the suit of the respondent.

2. The facts of the case briefly are that the petitioner Mst. Sanam Shahzadi instituted a suit against the respondent Muhammad Anwar seeking recovery of Rs.25,00,000/- as penalty/compensation on account of alleged breach of compromise/agreement dated 07.10.2010. The petitioner pleaded that she was married to the respondent on 17.09.2009 and from the wedlock a son namely Muhammad Noor-Ullah was born on 08.06.2010, who remained in her custody. According to the petitioner, the respondent had contracted another marriage with Mst. Asmat Tahira. Although the respondent had allegedly divorced the said lady and the divorce had become effective on 15.07.2008, he subsequently resumed marital

relations with her, which became the cause of strained relations between the parties. The petitioner asserted that on account of such strained relations she was expelled from the respondent's house and since then had been residing with her parents. The petitioner further pleaded that thereafter the elders, respectables and relatives of both sides intervened and brought about a compromise between the spouses. The terms of such compromise were reduced into writing through agreement No.979 dated 07.10.2010 in the presence of Muhammad Akbar, Javed Akhtar, Muhammad Amjad and other witnesses. In terms of the said agreement, the respondent undertook, *inter alia*, that he would pay Rs.2,000/- per month to the petitioner as maintenance/pocket expenses; that land measuring five marla would be transferred in favour of the minor son Noor-Ullah; that he would construct a house upon the said five marla within three months by spending at least Rs.13,00,000/-; and that in case of default or breach of the undertaking, he would be liable to pay Rs.25,00,000/- to the petitioner as penalty/compensation. The petitioner's case was that the respondent failed to honour his obligations under the agreement and therefore, became liable to pay the agreed amount.

The respondent contested the suit by filing written statement. He also instituted a separate suit against the petitioner seeking cancellation of agreement No.979 dated 07.10.2010. His stance was that the petitioner had left his house of her own accord after the birth of Noor-Ullah, whereafter he made repeated efforts through respectables and relatives to bring about reconciliation. According to the respondent, the petitioner and her relatives required him to purchase a stamp paper so that terms of their own choice could be written thereon and only thereafter the petitioner would rejoin him. The respondent pleaded that being desirous of rehabilitating the petitioner in his house at any cost, he purchased stamp paper No.979 on 01.10.2010 and handed it over to the respectables. Thereafter, on 07.10.2010, a sitting of the elders and relatives was held at Mauza Aadha, Tehsil Daska, wherein he was compelled under undue influence to accept unilateral terms. The

respondent's further stance was that the real object of the agreement was that the petitioner would resume cohabitation with him but she failed to do so.

Both suits were consolidated by the trial Court. After framing consolidated issues and recording evidence of the parties, the trial Court vide consolidated judgment and decree dated 19.01.2016 decreed the petitioner's suit and dismissed the respondent's suit for cancellation of the agreement. The respondent challenged the said judgment and decree by filing two separate appeals, which were accepted by the Additional District Judge, Sialkot vide consolidated judgment and decree dated 20.03.2017. Consequently, the petitioner's suit was dismissed and the respondent's suit was decreed. Hence, the instant civil revision.

3. Arguments heard and record perused.

4. The petitioner's claim is founded upon agreement/compromise dated 07.10.2010. For proper appreciation of the controversy, the terms of the agreement are reproduced below:-

من مقرر کا اپنی بیوی مسماة صنم شہزادی کے ساتھ تنازع پیدا ہوا تھا۔ جو کہ معززین نے مابین فریقین راضی نامہ کروایا ہوا ہے۔ من مقرر کے نطفہ سے اور مسماة صنم شہزادی کے بطن سے ایک بیٹا مسمیٰ نور اللہ پیدا ہوا جس کی عمر تقریباً 4 ماہ ہے۔ جو کہ بقید حیات اور اپنی والدہ مسماة صنم شہزادی کے پاس زیر پرورش ہے۔ حسب ذیل شرائط کے تحت راضی نامہ مابین فریقین طے پا گیا ہے۔

نمبر 1: من مقرر اپنی زوجہ صنم شہزادی کو مبلغ /2000 دو ہزار روپے ماہانہ بطور جیب خرچ دینے کا پابند ہو گا۔

نمبر 2: یہ کہ من مقرر کے والد مسمیٰ محمد بشیر احمد ولد لال دین نے رقبہ تعدادی 0-5 بحق پسرم من مقرر مسمیٰ نور اللہ کے حق میں بہہ کروا دیا ہوا ہے جس کا انتقال نمبر 3408 ہے۔ رقبہ تعدادی پانچ مرلے واقع موضع آڈھا تحصیل ڈسکہ ہے۔ جس کا حدود اربعہ شمال حویلی محمد اقبال ولد لال دین، جنوب شارع عام، مغرب شارع عام، مشرق حویلی محمد سرور ولد محمد بشیر واقع ہے۔ جس کا قبضہ حوالہ مسماة صنم شہزادی اور پسرم نور اللہ کر دیا گیا ہے۔

نمبر 3: یہ کہ من مقرر تین ماہ کے اندر اندر رقبہ تعدادی 0-5 پر مسماة صنم شہزادی کو مکان بنا کر دینے کا پابند ہو گا۔ اور کم از کم مکان پر تیرہ لاکھ روپے /1300000 لاکھ روپے لگانے کا پابند ہو گا اور مکان مکمل کرنے کا بھی پابند ہو گا۔ جس کے ضامن عبدالرزاق ولد خوشی محمد ساکن آڈھا، اور آغا زاہد حسین کاظمی ولد سید طالب حسین کاظمی ساکن اسلامیہ پارک آڈھا تحصیل ڈسکہ ذمہ دار اور ضامن ہوں گے۔ اور من مقرر ہر طرح سے اقرار نامہ کا پابند ہو گا۔ اگر من مقرر نے کوئی خلاف ورزی کی تو من مظہر بطور ہرجانہ مبلغ /2500000 لاکھ روپے) پچیس لاکھ روپے اپنی بیوی مسماة صنم شہزادی کو ادا کرنے کا پابند ہوں گا۔ جو کہ مسماة صنم شہزادی بذریعہ معززین اور بذریعہ عدالت دیوانی و فیملی وصول کرنے کی حقدار ہو گی اور من مقرر ادا کرنے کا پابند ہو گا اور من مقرر کا کوئی عذر قابل قبول نہ ہو گا۔

نمبر 4 : من مقرر اپنی بیوی مسماء صنم شہزادی کو علیحدہ رہائش میں مقیم رکھے گا۔
 اور اس کو ہر طرح سے خوش رکھنے کا پابند ہو گا۔
 نمبر 5 : من مقرر اپنی ہر دو زوجگان کو برابر حقوق بحصہ برابر اور اپنے بال بچوں
 کی تعلیم و تربیت بطریق احسن پابند ہو گا۔
 نمبر 6 : من مقرر نے اقرار نامہ ہذا بدوں خوردنی نشہ آور شے کے بلا جبر و اکراہ،
 حسب آزاد مرضی رو برو گواہان تحریر کرایا ہے۔

The respondent, while contesting the petitioner's suit and while instituting his own suit for cancellation of the agreement, did not deny that the stamp paper was purchased by him. His defence, however, was that he was compelled to accept the terms of the agreement under undue influence. For reference, the relevant excerpt from the plaint of the respondent's suit is reproduced below:-

3۔ یہ کہ مدعا علیہا نور اللہ (نابالغ) پیدا ہونے کے بعد مدعی کا گھر اپنی مرضی سے چھوڑ کر چلی گئی جب کہ مدعی مدعا علیہا کو آباد کرنے کی ہر ممکن کوشش کرتا رہا مگر مدعا علیہا آبادی سے انکاری رہی یہاں یہ بات قابل ذکر ہے کہ مدعی کی ہمراہ مدعا علیہا یہ دوسری شادی تھی چنانچہ مدعی نے بذریعہ معززین علاقہ مدعا علیہا کو آباد کرنے کی کوشش شروع کر دی پھر مدعا علیہا اور اسکے عزیز و اقارب نے مدعی کو کہا کہ آپ اثاثہ خرید کر لاو ہم اس پر اپنی مرضی کی شرائط تحریر کریں گے اور پھر بعد از تحریری شرائط مدعا علیہا آپ کے گھر آباد ہو جائے گی۔ چنانچہ مدعی کو مجبوری کی حالت میں ماننا پڑا چونکہ مدعی ہر صورت میں مدعا علیہا کو آباد کرنا چاہ رہا تھا پھر مورخہ 1.10.10 کو مدعی نے اثاثہ نمبری 979 خرید کر معززین علاقہ کے حوالے کر دیا تاکہ مدعا علیہا مدعی کے گھر آباد ہو جائے پھر مورخہ 7.10.10 کو مدعا علیہا کے عزیز و اقارب اور معززین علاقہ کی بیٹھک موضع آڈھا تحصیل ڈسکہ میں ہوئی جس میں مدعی پر undue influence ڈال کر یکطرفہ شرائط مطابق اقرار نامہ/راضی نامہ مورخہ 7.10.10 مدعی کو قبول کرنے کیلئے مجبور کیا گیا چنانچہ اقرار نامہ/راضی نامہ کی شرائط کی روح یہ تھی کہ مدعا علیہا کسی بھی طریقے سے مدعی کے گھر آباد ہو مگر اس کے باوجود مدعا علیہا مدعی کے گھر آج تک آباد نہ ہوئی بلکہ مدعی کے گھر آباد ہونے سے انکاری رہی۔

4۔ - - - - - نیز اقرار نامہ/راضی نامہ کی شرائط دو طرفہ تھیں جو کہ مدعی کے ساتھ مدعا علیہا نے بھی شرائط کی پاسداری کرتے ہوئے مدعی کے گھر آبار ہونا تھا جو اس نے آباد نہ ہو کے خود ہی اقرار/راضی نامہ کو توڑ دیا تھا۔ - -

The above pleading makes it clear that the respondent's case was not one of denial of the agreement. His own stance was that matrimonial relations between the parties had become strained and efforts for reconciliation were made through elders and respectables; he himself purchased the stamp paper and the document was written in the course of such reconciliation efforts. So, the agreement was not a document

suddenly brought into existence by one side in isolation. It was admittedly connected with a process of settlement between the spouses through relatives and respectables. Once the respondent admitted the purchase of stamp paper and the preparation of the document in the course of reconciliation proceedings, the burden heavily lay upon him to prove such facts as could legally invalidate the agreement.

5. The plea of undue influence was neither pleaded with the required particulars nor proved through convincing evidence. The respondent was required to establish who exercised undue influence, in what manner it was exercised, what was the nature of pressure and how his free will was overborne. Mere assertion that the petitioner's relatives or respectables compelled him to accept unilateral terms was not sufficient to defeat a written document particularly when the execution of the document and the surrounding circumstances were substantially admitted. The respondent did not deny his signatures on the agreement. The document also contains an express recital that it was executed without intoxication, coercion or compulsion, with free consent and before witnesses. In the absence of reliable evidence to the contrary, such recital could not be lightly ignored. Furthermore, the surrounding circumstances also belie the plea of undue influence. The respondent was an adult male participating in a reconciliation process through elders and respectables. He himself purchased the stamp paper on 01.10.2010, whereas the agreement was written on 07.10.2010. The interval between purchase of stamp paper and writing of the agreement further indicates that the matter was not a sudden or impulsive transaction. More importantly, the agreement records that the respondent's father Muhammad Bashir Ahmad had already transferred land measuring five marla in favour of Noor-Ullah, the minor son of the parties, through gift mutation No.3408. This recital is not an ordinary or inconsequential statement. It shows that before the terms of the agreement were reduced into writing, an important part of the settlement had already been acted upon by transfer of land in favour of the minor. The act of the respondent's father also demonstrates that he was not a stranger to the

arrangement and had, at least, knowledge of and consent to the settlement being effected between the spouses. This circumstance strongly corroborates the genuineness of the compromise and substantially weakens the respondent's version that he alone was helplessly subjected to undue influence by the petitioner's side.

6. It is equally settled that while construing a document, the Court is not to be guided by isolated words or clauses alone but must gather the intention of the parties from the document as a whole and from the circumstances in which it was executed. Guidance in this respect is found in the case of “Mst. Fakhra Jabeen and others v. Wasif Ali and others” (PLD 2026 SC 20). Relevant excerpt from the said judgments is as under:-

“Any ambiguity in a contract is to be resolved by ascertaining the real intention of the parties and in order to interpret the terms of contract, the court has to first ascertain the intention of the parties.”

When the agreement in question is read as a whole, in the background in which it was executed, its dominant purpose becomes evident. It was a matrimonial/family settlement intended to restore harmony between the spouses, secure residence and maintenance for the petitioner, ensure fair treatment to her in view of the respondent's other matrimonial relationship and protect the welfare of the minor son through transfer of land in his favour. Courts ordinarily lean in favour of upholding *bona fide* family settlements, particularly where such arrangements are designed to resolve matrimonial discord and safeguard the interests of a wife and minor child, unless the arrangement is shown to be unlawful, unconscionable or otherwise unenforceable. However, no such legal impediment has been shown in the present case.

7. It is true that the agreement, in its form, contains undertakings mainly by the respondent but those undertakings cannot be viewed as detached or gratuitous promises. They were integral to the broader object of reconciliation. As husband, the respondent was already under legal and moral obligation to maintain the petitioner, treat her fairly and

provide her appropriate residence. In the peculiar facts of the case, the undertaking to provide a separate abode assumed special significance because the respondent had another wife. The petitioner's willingness to resume matrimonial life could not reasonably be separated from the respondent's promise to provide her a separate and secure residence. Therefore, the respondent's contention that the agreement was contingent upon the petitioner first returning to his house cannot be accepted in the absolute terms suggested by him. Acceptance of such contention would defeat the very purpose of the compromise, for the settlement did not contemplate that the petitioner should first return to the same environment which had given rise to discord, rather, it specifically required the respondent to keep her in a separate abode and to construct a house upon the five marlas of land within three months.

8. The record shows that the respondent failed to arrange any separate residence for the petitioner and also failed to construct the house within the stipulated period. These were not collateral or insignificant obligations. They constituted the very conditions which were meant to facilitate restoration of matrimonial life in a dignified and secure manner. Despite such failure on the respondent's part, the evidence shows that the petitioner did go to the respondent's house after execution of the agreement, though for one day. This circumstance is material because it demonstrates that the petitioner did not repudiate the settlement at the threshold. On the contrary, she made an attempt, however brief, to act upon the reconciliation. The respondent, having failed to create the conditions expressly promised by him, cannot shift the entire blame upon the petitioner by alleging that she did not permanently reside with him. He cannot approbate and reprobate by relying upon the object of cohabitation while ignoring his own express undertaking to provide separate residence, which was an essential component of such cohabitation.

9. There is yet another aspect of the matter. The appellate Court appears to have treated the petitioner's absence at the time of execution of the agreement as a circumstance sufficient to deny enforcement of the

compromise. This approach is not sustainable. The petitioner while appearing as PW-1, stated in cross-examination that her uncle got the terms written in the agreement on her instructions and that her father and uncle informed her about its contents. Moreover, the respondent's own case is that the sitting was attended by respectables and relatives of the petitioner. In our social context, particularly in matters of matrimonial reconciliation, it is not uncommon that elders or male relatives of the wife participate in such deliberations on her behalf and convey her stance, concerns and conditions. The absence of the wife from the actual sitting, by itself, does not render the compromise unenforceable, especially when she acknowledges the document, relies upon it and seeks its enforcement. The significant fact is that the obligations under the agreement were primarily undertaken by the respondent, whose signatures admittedly appear on the document. The petitioner is not seeking to avoid the agreement rather she is affirming it. Her absence or non-signing of the document, therefore, is not fatal to her claim.

10. The matter may also be examined from the standpoint of the respondent's own obligations under the agreement. The respondent undertook to construct a house on the five marla of land within three months by spending at least Rs.13,00,000/- and further agreed that in case of breach he would be liable to pay Rs.25,00,000/- to the petitioner as damages/penalty. The admitted and proved position is that he failed to construct the house and failed to provide separate residence to the petitioner. His plea that the petitioner did not fulfill the alleged contingency of cohabitation was not available to him, because he himself failed to perform the obligations which were necessary for meaningful and dignified cohabitation. The appellate Court, therefore, erred in reversing the well-reasoned judgment and decree of the trial Court. It misread the material circumstances, particularly the respondent's admission regarding purchase of stamp paper, his failure to prove undue influence, the recital regarding gift mutation No.3408, partial performance of the settlement through transfer of land in favour of the

minor and the respondent's express undertaking to provide separate residence and construct the house.

11. For the foregoing reasons, this petition is allowed. The impugned judgment and decree dated 20.03.2017 passed by the Additional District Judge, Sialkot are set aside and the judgment and decree dated 19.01.2016 passed by the trial Court are restored.

However, it is observed that the compromise/agreement was executed in the year 2010 and the respondent was required to construct the house within three months. The cause of action, therefore, matured in the year 2011. Since then, the value of money has substantially depreciated. In such circumstances, mere recovery of the same nominal amount after a long lapse of time would not adequately compensate the petitioner and would, in effect, reward the defaulting party for prolonging the matter. Therefore, while restoring the decree of the trial Court, it is appropriate to mould the mode of satisfaction of the decree so as to preserve, as far as possible, the real value of the obligation undertaken by the respondent. Accordingly, the petitioner shall be entitled to recover Rs.25,00,000/- by calculating its equivalent value, at her option, either with reference to the exchange rate of US Dollar at the time of realization or with reference to the prevailing price of gold at the time of realization¹. There shall be no order as to costs. Decree sheet be drawn accordingly.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

*Azhar**

¹ "Ayesha Shaheen v. Khalid Mehmood and another" (2013 SCMR 1049), "Hafiz Abdul Sattar and another v. Afzaal Hussain and 8 others" (PLD 1998 Lahore 149), "Reliance Construction Co. v. Agha Khan Medical College Foundation, Karachi" (1994 MLD 248).